

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
TAHNAZIA MYERS,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, and Sgt. JONATHAN SUERO,Defendants,
-----X

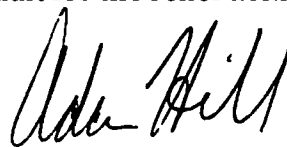
Index No.:

Date purchased:

Plaintiff designates
KINGS County
as the place of Trial.**SUMMONS**The basis of the venue is
Place of Occurrence:
Brooklyn, NY

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Brooklyn, New York
August 16, 2021

Adam Hill, Esq. of
ROSS & HILL, ESQS.
Attorneys for Plaintiff
16 Court Street, 35th Floor
718-855-2324

Notice: The nature of this action: false arrest; false imprisonment; battery; assault; excessive force; unlawful detention; violation of civil rights; malicious prosecution; negligence; personal injuries.

The relief sought is monetary damages: compensatory damages and exemplary damages.

Upon your failure to appear, judgment will be taken against you by default in a sum which exceeds the jurisdiction of any lower court, together with interest from April 16, 2021 and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.:
TAHNAZIA MYERS,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, and Sgt. JONATHAN SUERO,

Defendants,

-----X

1. At all times hereinafter mentioned, plaintiff was and still is a resident of Brooklyn, NY, the County of Kings.
2. At all times hereinafter mentioned, defendant The City of New York was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, defendant New York Police Department is an agency acting on behalf of The City of New York and engaged by The City of New York to perform police duties and to protect the health, welfare property and safety of the residents of The City of New York.
4. At all times hereinafter mentioned defendant, Sgt. Jonathan Suero of the 90th precinct, shield number 5435, was a member of service employed by the New York City Police Department and at all times herein mentioned was acting in the scope of his employment as a police officer.
5. At all times hereinafter mentioned defendant The City of New York, its agents, servants and employees operated, maintained and controlled the Police Department

including all the police officers thereof.

6. On May 12, 2021 plaintiff's Notice of Claim was made and served upon the defendant, said service occurring within 90 days of the incident giving rise to this law suit.

7. That more than thirty (30) days have elapsed since the service of said Notice and adjustment or payment of plaintiff's claim has been neglected or refused.

8. That this action is being commenced within one (1) year and ninety (90) days after the happening of the events upon which the claim is based.

9. That on April 16, 2021 at approximately 5:00 p.m. near Dumont Ave and Mother Gaston Blvd., Brooklyn, New York, police officers, including Sgt. Jonathan Suero.

10. That police officers, including Sgt. Jonathan Suero, without reasonable or probable cause, assaulted and battered plaintiff.

11. That the responding police officers used unnecessary and excessive force.

12. That Sgt. Jonathan Suero used unnecessary and excessive force.

13. That plaintiff sustained severe personal injuries as a result of the police offices use of unnecessary and excessive force.

14. That plaintiff sustained severe personal injuries as a result of Sgt. Jonathan Suero and other police officers grabbing, throwing, twisting, kneeling and kneeling on plaintiff.

15. The incident resulted from the intentional, wanton, wrongful conduct of the defendants, including Sgt. Jonathan Suero.

16. That the incident as aforescribed resulted from the negligence of the defendants, its agents, servants and/or employees, with no negligence on the part of the plaintiff contributing thereto.

17. As a result of the foregoing, plaintiff sustained compensatory damages and exemplary damages in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A SECOND CAUSE OF ACTION

18. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs 1 - 17 hereof with the same force and effect as though fully set forth herein at length.

19. After assaulting and battering plaintiff, police officers unlawfully detained, falsely arrested and falsely imprisoned plaintiff.

20. The unlawful detainment, unlawful arrest and unlawful imprisonment of plaintiff was without any cause or justification.

21. That defendants' conduct was intentional, wanton, and wrongful.

22. The detainment, arrest and imprisonment caused plaintiffs pain, humiliation, personal injuries and suffering.

23. As a result of the foregoing, plaintiffs sustained compensatory and exemplary damages in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A THIRD CAUSE OF ACTION

24. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs 1 - 23 hereof with the same force and effect as though fully set forth herein at length.

25. That in charging Plaintiffs with violations and crimes that defendants knew plaintiff did not commit constituted intentional, wanton and wrongful conduct by Sgt. Jonathan Suero and the arresting police officers.

26. That the attempted prosecution of Plaintiff for violations and crimes that defendants knew plaintiff did not commit constituted a malicious prosecution.

27. That plaintiff was not arraigned.

28. That the arrest of plaintiffs caused plaintiffs humiliation, embarrassment and stress.

29. That as a result of the foregoing, plaintiff sustained compensatory and exemplary damages in an amount which exceeds the jurisdiction of any lower court.

WHEREFORE, plaintiffs demand judgment against the defendants on all causes of action in amounts that exceed the jurisdiction of any lower court, with interest, costs and disbursements of the action.

Dated: Brooklyn, New York
August 16, 2021

Yours, etc.,

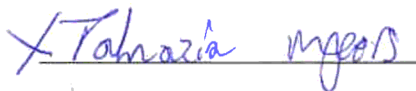
A handwritten signature in black ink, appearing to read 'Adam Hill', written over a horizontal line.

Adam Hill, Esq. OF
ROSS & HILL, ESQS.
Attorneys for Plaintiff
16 Court Street, 35TH Floor
Brooklyn, New York 11241
(718) 855-2324

STATE OF NEW YORK, COUNTY OF KINGS) s.s.:

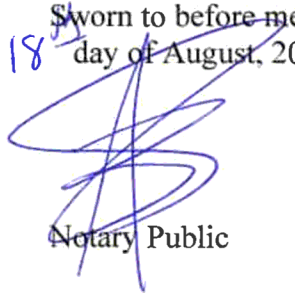
TAHNAZIA MYERS, being duly sworn, deposes and says:

I am the plaintiff in the within action, have read the foregoing COMPLAINT and know the contents thereof; that same is true to my own knowledge, except as to those matters therein stated to be alleged upon information and belief and as to those matters, I believe it to be true.



TAHNAZIA MYERS

Sworn to before me this
18th day of August, 2021


Notary Public

ANA L. RUIZ
Notary Public, State of New York
No. 01RU6349171
Qualified in Queens County
Commission Expires October 17, 2025 